

Experiences Sharing on Challenges and Solutions in Urban Reconstruction

Date: 23rd October, 2019

Location: DUDBC Hall

NRA organized this session with the support of HRRP. Its agenda was to share the current status of urban reconstruction, collectively outline the challenges and to revive the Urban Working Group in order to deliberate on solutions for urban recovery. There were 40 participants at the event (23 males and 17 females) from NRA, municipalities and donor and NGO representatives including Deputy Mayor of Mahalaxmi, Ms. Nirmala Thapa.

The session commenced with welcome remarks by _____ from the CLPIU. This was followed by 5 presentations. HRRP gave a presentation outlining the current key urban issues and challenges, followed by NSET and three municipalities viz. Banepa, Mahalaxmi and Kathmandu sharing the current status and learnings of urban reconstruction from their areas. This was followed by an interaction session and closing remarks by NRA.

To access the presentations, click [here](#).



Key points from the presentations:

1) HRRP

- The delineation between urban municipality and rural municipality does not truly reflect the urban areas, as there are many rural areas/settlements within urban municipalities and a few urban areas/settlements, market places within rural municipalities.
- The presentation outlined the issues of finance, land, socio-technical assistance, retrofitting, heritage settlements and communication.
- The focus has recently shifted to urban recovery, and a new model for STA needs to be developed for it. For example: STA is required for process of retrofitting and demolition.
- Mechanisms for community participation are inadequate
- An Urban Working Group is required to strengthen the efforts of NRA and municipalities in urban reconstruction.

2) NSET

- People tend to use the reconstructed house if the involvement of the intended users is from the beginning of site selection to implementation.
- Facilitation is required in building permit process.
- Significant subsidy from Municipality has helped in preservation of the vernacular aesthetic.
- The construction of houses in urban areas is usually connected with future revenue it can generate and the cost of construction is usually high.
- Most of the houses in urban areas are partially damaged but are enlisted in full beneficiary list. They have invested significantly in repairing such houses and are not ready to retrofit too.

3) Banepa Municipality

- Identified beneficiaries: 7132; those who signed Partner Agreement: 6336; received first tranche: 6336; received second tranche: 3667; received third tranche: 3132.
- Retrofitting beneficiaries: 280. Those who signed Partner Agreement: 96. Received first tranche: 77. A retrofitting demonstration is being held in ward 6, with support from UNOPS.
- 10 Landless beneficiaries have got approval to build in government land where they were living pre-earthquake.
- Six beneficiaries applied to transfer from reconstruction to retrofitting and 3 have been approved. 43 beneficiaries applied to shift from retrofitting to reconstruction and have not yet been approved.

- Other issues include: beneficiaries think that 3 lakhs is not enough for urban reconstruction assistance, some beneficiaries having more than one house, there are delays in conversion from reconstruction to retrofitting and vice-versa.

4) Mahalaxmi Municipality

- Total number of beneficiaries: 3635. 3007 have received the 1st tranche; 922 have received 2nd tranche, 823 have received the 3rd tranche.
- The major issues in urban reconstruction are getting a building permit; in many cases beneficiaries already have an alternate shelter; land parcels are smaller than the NBC limit.
- Another challenge is that the beneficiaries do not have the financial means to construct and find the tranche amount inadequate to support the reconstruction.
- Mahalaxmi municipality has taken an initiative to provide a subsidy for the building permit tax

5) Kathmandu Municipality

- Reconstruction total beneficiaries: 48,572; received first tranche: 86%; received second tranche 38%; received third tranche 32%.
- Issues include: demolition issue for adjacent houses, Right of Way has leading to reduction of land size, houses under high tension electric lines needs to relocate; family disputes over land, *Mohi Talsing* in which case tenants don't have certificates and cannot start reconstruction.
- Retrofitting has not picked up much; there will be a retrofitting training at municipal level. The municipality recommends separating the repair and retrofit manual for more clarity.
- They also recommend creating separate policies and guidelines for the core areas and heritage settlements



Key points from the interaction session:

1) Ranjan Dhungel, Program Manager, Baliyo Ghar Project, NSET

- Community-based model is good in shelter reconstruction, however that should be in different form in urban reconstruction.
- Urban Reconstruction needs to be addressed in a unique way, and not from the blanket approach.
- The social issues of urban reconstruction should be addressed in the community/society itself.
- Driving factor for urban reconstruction should be governed from NRA.

2) Deputy Mayor, Mrs. Nirmala Thapa, Mahalaxmi Municipality, Lalitpur

- In one of the remote rural wards (Ward no 10) of Mahalaxmi Municipality, a public notice was issued and a public hearing was done also but the Municipality requires support to initiate housing reconstruction in such areas.

- People of this community are engaged in making alcohol and consuming alcohol, there are landless and economically weak residents in the area, and there is an utmost need to address such beneficiaries.
- Municipalities don't hold capacity to build houses for its citizens. POs need to be mobilized for forwarding housing reconstruction for landless people in remote & rural wards.

3) Lajana Manandhar, Executive Director, Lumanti

Several issues of shelter reconstruction have been discussed time & again but there haven't been enough answers or an action plan from NRA. Technical assistance is not enough in taking approval of building permit. Various actions are taken at municipality level. So NRA should make a favourable environment for easy facilitation & approval of building permit. Urban reconstruction should not be addressed with a blanket approach; the various tangible & intangible heritage should be addressed collectively.

4) Roshan Raj Giri, M & E Consultant for Kathmandu, Lalitpur and Makwanpur

- Majority of the beneficiaries have taken governments grant amount as a relief amount rather than a support for housing reconstruction.
- There are vulnerability issues with adjoining non-damaged houses whenever damaged houses decide to demolish.
- Damage category needs to be done for houses in retrofitting list too so that process can be proceeded. There is need to increase additional amount in retrofitting grant.
- There is also need for NRA to make strong decisions for those beneficiaries who do not intend to reconstruct their house even after taking 1st tranche, so that the returned amount can be utilized for vulnerable groups accordingly.

5) Jhappar Bishwakarma, Deputy Director, CLPIU Building

- There is a need to increase socio-technical assistance and social mobilization to float the key guidelines and about deadlines processes.
- There is also need to enforce strong mechanisms to see the unused amount to be returned by beneficiaries who are not intending to rebuild houses.
- NRA already has master plan of 7 heritage settlements.
- There is need to address the issues by terming it as sensitive, and special decisions should be taken on sensitive cases.
- Vulnerable people should be brought into the mainstream of providing technical support for their housing reconstruction.

- For beneficiaries not intending to build, there is need to give a cut off line so that government's grant are returned if unused for shelter reconstruction.

6) Final address by Dr. Chandra Bahadur Shrestha from NRA

- We have solutions on some urban problems and not on some others. It is really complex, which was not anticipated earlier. When NRA was initiated we didn't really have an idea about the complexity of urban housing.
- This has been a good lesson on recovery and needs to be documented. We will have a conference in 2020 November, and before that we will have a series of events on housing, heritage, livelihood, governance and crosscutting issues. On 25th April there will be a symposium and we are expecting papers from different contributors for the same. This learning has to be archived.
- Retrofitting has lagged behind. We are developing institutional capacity with regards to retrofitting. In this construction season retrofitting will go on more vigorously. We have a model for rural, but we now have to develop models for retrofitting in urban areas.
- A policy on joint housing was passed in NRA
- In terms of the loan issue, the earlier 2% loans have been discontinued (1300 beneficiaries received this until now). There is now another provision that the government will provide a 5% subsidy to the loan procured by the beneficiary and the beneficiary will have to pay the remaining interest. The maximum principal amount for such a loan for a beneficiary household is 3,00,000 NPRs.
- A campaign was undertaken in the last 2 months to understand reasons why reconstruction is not taking place and policy level action will be taken if needed.
- If beneficiaries don't reconstruct they will be delisted. And the tranche will be retrieved from the beneficiaries.
- The real problems we are facing now are: the land issue, problem with neighbours during demolition. Earlier we took the house as one independent unit. But this is not the case, because of one house demolition is damaging the neighbours' homes, then we will also compensate the neighbour. But that is not the solution for the neighbour. Hence this is not the solution.
- The policy level would like to speak directly with the beneficiaries. Such interactions will be organized in different wards. Bring those people who have not reconstructed, along with ward chairmen and let us have real interactions with the community.
- In terms of heritage reconstruction, the people who observe the government's rule on the facade will be given 50,000 NPRs. This is already operational. However many are constructing beyond the 35 feet limit. Many do not wish to have sloped roof. Many want flat space on the top for sunshine, drying harvest etc. The requirement of people and heritage requirements are differing from each other. We have proposed to heritage department to amend the act. If buildings are not useful to beneficiaries they won't reconstruct. But amending the act will take a year or two.

- The problems in hand do not have singular dimensional solutions, they are complex and require complex and creative solutions. Up to this point we are at 65% and after delisting we are at 80% progress. We had to delist some beneficiaries who have another house or who are not intending to rebuild. We have to really support those who are deprived and are not being able to construct their house. The responsibility is not only with NRA but also local governments and NGOs.

URBAN WORKING GROUP

An Urban Working Group was proposed at the event in order to support the work of the NRA and municipalities in urban recovery. Six interested members (NSET, CRS, Lumanti, KMC, JICA, World Vision and HRRP) signed up to join the working group and the first meeting will convene in the second week of November 2019. Kindly contact Bhubaneswari Parajuli: techcord.national@hrrpnepal.org if you are interested in joining the Urban Working Group.

CLPIU Building/Housing Recovery and Reconstruction Platform (HRRP)

Urban Recovery and Reconstruction Sharing Session

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